Analysis of the Current Situation of Local Government Food Safety Supervision in China*

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Abstract: Food safety incidents happened frequently in recent years, which not only affects people's health and life, but also hinders the economy development and social stability. Problems of government supervision, ineffective law enforcement and so on also are some of the main causes of food safety concern. Using the method of empirical research, field visits, questionnaire investigation and literature research, this article researches the status of local government food safety risk monitoring in our country, points out the problems and deficiencies, and analyze the reasons of problems, in order to explore the reasonable and effective ways to solve the problem of food safety risk monitoring under the actual situation of the local government.
Key words: Government supervision; Food safety; Countermeasure

1 Introduction

In the past two decades, the central government promulgated a series of laws and regulations in order to strengthen food safety supervision, as well as the local governments formulated many more food safety regulations and various risk monitoring measures. It is obvious that food safety has increasingly become the focus of public attention. However, the current food security situation is still serious, as food safety events emerge in endlessly, such as Sanlu scandal, poison bean sprouts, clenbuterol, transgenic rice etc. These successive occurrences of food safety incidents not only have threatened the consumer confidence in food production and their health, even though sometimes the public is unaware of the potential risk in food like genetically modified food, it seriously shake the authority of public sectors and public trust in them.

At the same time, along with the central government's attention, the local governments have obtained more freedom in formulating the food safety regulations, and have also made some achievements. But when examining the local governments' supervision closely, it can be found that hiding behind progress plenty of problems and shortcomings exist.

2 The Achievement of the Local Governments' Food Safety Supervision in China

With the economic and social development, paying more attention to food safety supervision work, not only the central government but also the local governments continue to strengthen the supervision of the whole process including the agricultural products, raw materials, processing, distribution and sales, input large amount of manpower, material and funds to obtain the corresponding results.

2.1 Improvement in the overall food quality

The overall food quality has improved since 2000，with an increasing pass rate of food sampling according to China's statistics bureau. In 2001, the 60085 production of rice, noodles, oil, soy sauce, vinegar, according to the results of five types of food supervision and spot checks, on average, sampling percent of pass is only 59.9%.Nevertheless, according to the 2012 statistics, most of the food pass rate of oil, meat and other 10 categories of products such as soy products, alcohol, are above 90%, the export food has remained at more than 99% pass rate for many years.

* The paper is supported by the National Natural Science Foundation of China (71203171) and by the Humanities and Social Science Fund of the Ministry of Education (12yjczh150)

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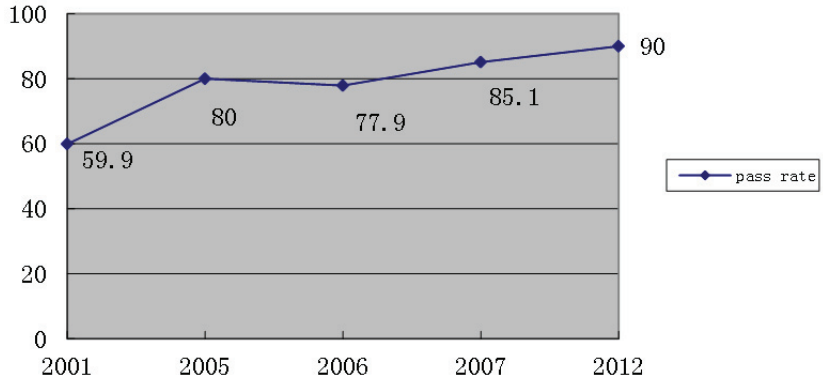


Figure 1 2001-2012 Food Smpling Pass Rate

2.2 The rapid development of the digitalization of food safety supervision

Under the circumstance of the information era, the nation has promoted the digital construction of food safety supervision actively. In the '2013 key work arrangement of food safety' which was issued at the beginning of 2013 by the general office of the state council, it proposed to push forward informationalization construction of food safety supervision , required the construction of national food safety information platform and the electronic traceability system of food safety.

3 The Problems of the Local Governments' Food Safety Supervision in China

3.1 Lack of local fiscal funds with no special funds

Through the visit to a number of local authorities and consulting relevant material, it can be found that in the practical work majority of departments are facing with a reality problem that there is not sufficient budget for food safety supervision. On the one hand, the economic development degree varies from place to place; therefore, the fiscal situation of the local governments is not exactly the same. On the other hand, the funds used in the food safety supervision mainly come from the local government budget instead of an 'earmark ', especially in those underdeveloped areas, those funds are too finite to support the food safety supervision work .

3.2 Decentralized regulators with overlapping functions

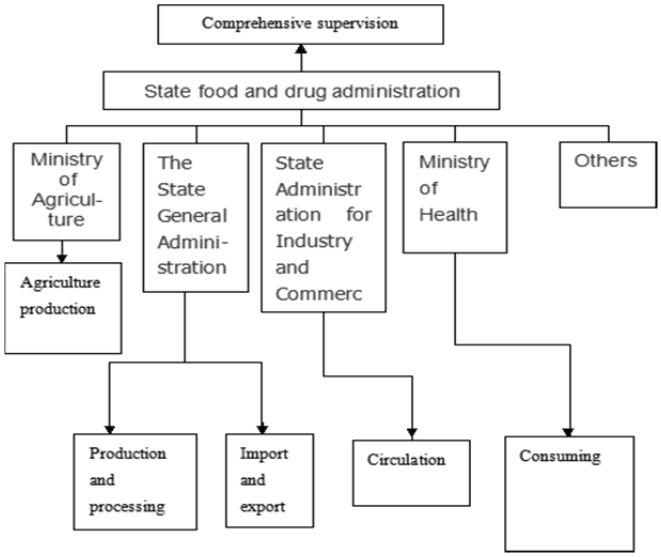


Figure 2 The Structure of Food Security Management Mechanism in China

Food Safety Supervision responsibility has been divided into different kinds of public sectors, such as administrative departments of health, industry and commerce, quality supervision, medicine

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supervision, agriculture, supervising with the way of subdivision control(Ren Xi, AnYu-fa, Duo Xi-liang,2011), which causes strong tensions between decentralized institutional system and isolation, long and narrow supervision channel of food safety as well as the overlapping functions between different administrations which decrease the efficiency. Seen from the surface, even though it has formed a seamless chain of health sector for integrated cooperation, but in fact if segment monitoring because of the existence of departments considering from their own interests, experience the benefits, they grab control but if encounters problems, they pass the buck.

3.3 Short of consistent and comprehensive standards

The food safety standards are not unified, old and lag behind. The food safety standard system consists of national standards, trade standards, local standards and enterprise standards; although so many standards have been set, there are still weaknesses like repeat, contradictory, shortage of key term, less detailed standard, the implementation of the part of the standard is poor, and even compulsory standards also failed to be performed.

3.4 Problems of the legal system of China's food safety

Cooperation between the legal systems of food security is relatively poor. The whole system is full of different laws but lack of systematic and integrality, for instance , in addition to food safety law, the "Product Quality Law", "Agricultural Product Quality Safety", "Consumer Protection Law" and other laws all rise to the law based on the division of responsibilities in the department.

4 The Causes of Problems in the Local Governments' Food Safety Supervision in China

4.1 Outdated food safety regulatory system

In 2004 September, the State Council promulgated the "on Further Strengthening the work of food safety decision", established the "sub regulation based, supplemented by a variety of regulatory" supervision mode. Although under the direction of this mode, the food safety regulatory has been reformed for many times in recent years, various departments' responsibility is constantly changing and updating, such as the repeated separation and union of drag administration departments and health departments, compared with other developed countries(such as the U.S) there is still a gap .

4.2 Ineffective implementation of the supervision

First, the local governments are in a dilemma---they have to promote economic development as well as ensure the sustainable GDP growth. However, Chinese supervision institutions commonly focus on motivating all of the resources to deal with a certain kind of illegal incident with adoption of law enforcement way of concentrative governance at one period, meaning that the legal campaign is always launched and triggered by one emergent event at one particular period(Ren Xi, AnYu-fa, Duo Xi-liang,2011). Second, Food safety regulatory effect is so unapparent that it is hard to burnish those authorities' image, making local governments lack motivation.

5 Improve Countermeasures on Government Supervision of Food Safety

5.1 Establish exclusive funds and increase the input of food safety supervision

First, according to the local fiscal condition, the central government should provide special funds invested to the local food safety supervision, in order to solve a series of technical problem due to lack of funding , at the same time enhance the enthusiasm and independence of the local government . Second, when budgeting, more expenditure should be invested in the early period of food safety regulatory rather than a food safety incident handling.

5.2 Construct integrated food safety regulatory system

In order to improve the effectiveness and scientificity of food safety regulation, previously separate regulatory departments should be integrated to build a scientific and rational integrated food safety regulatory system, avoiding "departmentalization of administrative regulations, juridification of departmental interests" and resolve contradiction and conflicts between regulators, which make the whole legal system coordinated and form a closed loop

5.3 Improve the legal system of China's food safety supervision

Improve and perfect to the "food safety law" as the core of the system of laws and regulations, the implementation of strict enterprise and operators of punitive damages and group litigation system (Gao Meng, 2012). At the meantime, food safety enforcement should also be subject to public supervision and public opinion, so that law enforcement processes are more open, just, true and fair.

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5.4 Institute more comprehensive and specific food safety standards

The local government should learn from foreign experience, combined with national conditions, so as to establish a relatively perfect system of food safety standards and promote advanced food safety regulatory technical means such as the HACCP system and GAP system which are widely used in western countries .Frankly, Hazard Analysis Critical Control Point (HACCP) system implementation has become a mandatory obligation for all the minor food operators in the European Union. The government could launch a pilot programme allowing the new standards system in a few cities, adjusting the details to adapt to the reality in China, and then extend it nationally.

6 Conclusion

In summary, Food is the material basis of human survival and development with food safety not only affecting people's quality of life but also influencing the stability of the society. With the frequently happened food safety incidents, the loophole of the local food safety supervision is becoming an increasing problem. The government, as the representative of the public interest, bears an important responsibility in the food safety regulatory issues. Through strengthening and improving the monitoring of government on food safety, the current situation of local food safety will soon be improved and food safety issues in China will soon be effectively curbed.

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